

failed to timely file an answer. Defendant solely relied on its attorney (Lewis Brisbois) to timely file an answer in response to the service of the Summons and Complaint. Lewis Brisbois inadvertently made a mistake and failed to file a responsive pleading. Defendant filed this motion within a reasonable period of time. Defendant has, as is statutorily required, also provided other pleading appropriately responsive to the Complaint. Plaintiff's objections are overruled.

CU-25-00311 Enz, Susan W. vs. Enz, Russell,

CU-25-00312 Enz, Susan W. vs. Enz, Karen Elizabeth

Welfare and Institutions Code section 15657.03(a)(1) provides for elders to seek protective orders. (W&I §§15610.07, 15610.30.) A conservator may bring such a petition on behalf of an elder. (W&I§ 15657.03.) A prevailing party in such an action may be awarded court costs and attorney's fees, if any." (*Ibid.*) Fees and costs are mandatory when elder abuse is proven in civil actions, which underscores the public policy that victims of abuse should not have to pay to vindicate their rights. (W&I §§15657 sub (a), 15657.5 sub (a).) Here Petitioner was successful in obtaining restraining orders against Respondents. They knew or should have known that based on the evidence submitted in support of the TROs that a permanent order would almost certainly issue but instead forced the Petitioner to incur substantial fees to prepare for trial, which were preventable. (See Declaration of Ms. Modica.) After nearly four months of high conflict litigation, Respondents stipulated to the maximum restraining order after Petitioner called only himself as a witness.

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623; *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 ["ascertaining the fee amount is left to the trial court's sound discretion."].) Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts. (*Ketchum, supra*, 24 Cal.4th at 1132; *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095–1096; *Melnyk, supra*, 64 Cal.App.3d at 623.)

When assessing the reasonableness of any award of attorney's fees, courts frequently employ the "lodestar adjustment method," which "contemplates a preliminary determination of the amount of the lodestar-the reasonable number of hours expended multiplied by a reasonable hourly rate-and then the possibility of an adjustment of 'that figure up or down depending upon a variety of factors.'" (*Chodos v. Borman* (2014) 227 Cal.App.4th 76, 91-92.) These factors include the "nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." (*Melnyk, supra*, 64 Cal.App.3d at 623-24.) In civil actions for physical elder abuse, the following factors are considered in awarding mandatory attorney's fees: "(a) The value of the abuse-related litigation in terms of the quality of life of the elder or dependent adult, and the results obtained; (b) Whether the defendant took reasonable and timely steps to determine the likelihood and extent of liability; (c) The reasonableness and timeliness of any written offer in compromise made by a party to the action." (Welf. & Inst. §15657.1.) As set forth in the declarations of Petitioner's counsel, the rates charged are commensurate with local counsel of similar skill and less than those charged in nearby Bay Area counties. (Modica §24). Further, sound billing judgment was exercised in preparing for this litigation, including a consideration for any work that may have been redundant, took too much time to complete, was not critical, or undertaken purely as a courtesy to Petitioner. (*Id.* ¶25.) The fees and costs in CU 25-00311 and 00312 are inextricably entwined. Ms. Modica did not bill these cases separately.

Petitioner's motions, as prayed, are GRANTED to the extent that the court awards the Petitioner a total of \$221,924.50 in attorney's fees and costs collectively for these two cases, to be assessed jointly and severally against the Respondents Russell Enz and Karen Sims (a.k.a. Karrie Sims). The fees incurred in prosecuting each of these matters were bound together in party because of the Respondents' acting in concert in their abuse of Susan Enz, and so all work done on one file benefited the other. This makes unravelling each case's billing impossible.

Defendant's Demurrer to the First Amended Complaint ("FAC") is SUSTAINED with leave to amend. Plaintiff is to file and serve their amended complaint within thirty days of the date of this order. Defendants' Request for Judicial Notice is GRANTED. The Case Management Conference is continued to November 5, 2026 at 1:30 p.m.

A demurrer generally serves to test the legal sufficiency of the complaint's factual allegations. (*Genis v. Schainbaum* (2021) 66 Cal. App. 5th 1007, 1014.) A party may demur when any ground for objection to a complaint appears on the face of it, or from a matter from which the court is required or may take judicial notice. (Cal. Code of Civ. Proc. §430.30(a); *Levy v. Neilson* (2000) 83 Cal.App.4th 1061, 1063.) Demurrer lies where it appears on the face of the complaint that the plaintiff has not alleged facts sufficient to state a cause of action. (Cal. Code of Civ. Proc. §430.10(e); *James v. Sup. Ct.* (1968) 261 Cal.App.2nd 415.) The process of a demurrer does not serve to test the merits of the Plaintiff's case. (*Tenet Health System Desert Inc. v. Blue Cross of CA.* (2016) 245 Cal App 4th 821, 834.) When any ground for objection to a complaint appears on the face thereof, or from any matter of which the court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading. (Cal. Code of Civ. Proc. §430.30(a); *Levy v. Nielson* (2000) 83 Cal. App. 4th 1061, 1063.) For the purpose of demurrer, a judge must treat the demurrer as an admission of all material facts properly pled in the challenged pleading or that reasonably rise by implication, however improbable they are. (*Collins v. Thurmond* (2019) 41 Cal. App 5th 879, 894.) For the purpose of testing the sufficiency of a cause of action, contentions, deductions, or conclusions of law are not admitted as true, and must be ignored. (*Aubry v. Tri-City Hosp Dist.* (1992) 2 Cal.4th 962, 966-67.) Additionally, a party may not allege facts inconsistent with the exhibits to the complaint. (*Moran v. Prime Healthcare Management, Inc.* (2016) 3 Cal.App.5th 1131, 1145-6.)

First Cause of Action - Fraud

A promissory fraud theory requires a showing of: "(1) a promise made regarding a material fact without any intention of performing it; (2) the existence of the intent not to perform at the time the promise was made; (3) intent to deceive or induce the promisee to enter into a transaction; (4) reasonable reliance by the promisee; (5) nonperformance by the